

An Act

ENROLLED SENATE
BILL NO. 1533

By: Stanley of the Senate

and

Smith of the House

An Act relating to veteran burial; amending 72 O.S. 2021, Sections 34 and 1, Chapter 90, O.S.L. 2022 (72 O.S. Supp. 2025, Section 36), which relate to interment or cremation assistance for indigent veterans and the Dignity in Burial Act; requiring certain veteran to have been a resident of this state; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Burial assistance for indigent veterans

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 72 O.S. 2021, Section 34, is amended to read as follows:

Section 34. A. The Oklahoma Department of Veterans Affairs shall establish a program to provide assistance for the proper interment or cremation of honorably discharged indigent veterans of the United States Armed Forces. The program shall aid in obtaining any available burial benefits from the United States Department of Veterans Affairs or through private organizations. The program shall provide for a burial grant for any indigent veteran or any person who qualifies for reimbursement as determined by the Oklahoma Department of Veterans Affairs, for unpaid expenses directly resulting from interment or cremation. Maximum reimbursement shall not exceed One Thousand Dollars (\$1,000.00) per indigent veteran application.

B. Eligibility requirements for the program shall be as follows:

1. The deceased shall be a veteran as defined by Section 2 of this title;

2. No one shall have claimed the remains of the deceased ~~Veteran~~ veteran;

3. The veteran shall have ~~died in Oklahoma~~ been a resident of this state;

4. The veteran shall not have been in the custody of the Department of Corrections at the time of death;

5. The applicant shall provide documentation establishing the burial location of the deceased veteran's remains in a cemetery or the location where the deceased veteran's cremains have been permanently placed; and

6. The applicant shall provide documentation establishing that the deceased veteran received a proper memorial headstone or marker at the place of his or her interment as provided for in 38 U.S.C, Section 2306 ~~of Title 38 of the United States Code~~ or that a memorial headstone or marker meeting the same physical standards for size, material, composition, placement, and informational content was provided in the event the deceased veteran did not qualify under the provisions of 38 U.S.C, Section 2306 ~~of Title 38 of the United States Code~~.

C. The Executive Director of the Oklahoma Department of Veterans Affairs or his or her designee shall make final approval of ~~Indigent Veteran Burial Applications~~ indigent veteran burial applications, shall determine whether the deceased meets eligibility criteria, and may approve funds to reimburse the costs of interment or cremation.

D. Reimbursement shall be paid from the Indigent Veteran Burial Revolving Fund. If there are insufficient resources in the Indigent Veteran Burial Revolving Fund, payment shall be made from the Oklahoma Department of Veterans Affairs Revolving Fund.

Once funds are available in the Indigent Veteran Burial Revolving Fund, the Oklahoma Department of Veterans Affairs may be reimbursed for payments made from the Oklahoma Department of Veterans Affairs Revolving Fund.

E. Application processes for the implementation of this program shall be developed by the Oklahoma Department of Veterans Affairs.

F. Rules for the implementation of this program shall be promulgated by the Oklahoma Veterans Commission.

SECTION 2. AMENDATORY Section 1, Chapter 90, O.S.L. 2022 (72 O.S. Supp. 2025, Section 36), is amended to read as follows:

Section 36. A. This act shall be known and may be cited as the "Dignity in Burial Act".

B. The Oklahoma Department of Veterans Affairs shall establish a program to ensure a dignified burial for honorably discharged veterans of the United States Armed Forces who, prior to death, lacked the financial capacity to prepare for or to provide for an interment or cremation befitting a veteran of the United States Armed Forces. The program shall aid in obtaining any available burial benefits from the United States Department of Veterans Affairs or through private organizations. The program shall provide a burial grant for any veteran or any person who qualifies for reimbursement, as determined by the Oklahoma Department of Veterans Affairs, for unpaid expenses directly resulting from interment or cremation. The maximum amount of reimbursement, not including private funds, shall not exceed One Thousand Dollars (\$1,000.00) per application.

C. Eligibility requirements for the program shall be as follows:

1. The deceased shall be a veteran as defined in Section 2 of ~~Title 72 of the Oklahoma Statutes~~ this title;

2. The veteran shall have ~~died in Oklahoma~~ been a resident of this state;

3. The veteran shall not have been in the custody of the Department of Corrections at the time of death;

4. The applicant shall provide documentation establishing the burial location of the deceased veteran's remains in a cemetery or the location where the deceased veteran's cremains have been permanently placed;

5. The applicant shall provide documentation establishing that the deceased veteran was provided an appropriate casket if the deceased veteran was interred; and

6. The applicant shall provide documentation establishing that the deceased veteran received a proper memorial headstone or marker at the place of his or her interment as provided in 38 U.S.C., Section 2306 or that a memorial headstone or marker meeting the same physical standards for size, material, composition, placement, and informational content was provided in the event the deceased veteran did not qualify under the provisions of 38 U.S.C., Section 2306.

D. The Executive Director of the Oklahoma Department of Veterans Affairs or his or her designee shall make final approval of the Dignity in Burial Act applications, shall determine whether the deceased meets eligibility criteria, and may approve funds to reimburse the costs of interment or cremation.

E. Reimbursement shall be paid from the Indigent Veteran Burial Revolving Fund as provided in Section 34 of Title 72 of the Oklahoma Statutes this title. If there are insufficient resources in the Indigent Veteran Burial Revolving Fund, payment shall be made from the Oklahoma Department of Veterans Affairs Revolving Fund.

F. An application process for the implementation of this program shall be developed by the Oklahoma Department of Veterans Affairs.

G. Rules for the implementation of this program shall be promulgated by the Oklahoma Veterans Commission.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 3rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____